

26STCP01538 26STCP01538

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Case Number: 26STCP01538 Hearing Date: August 24, 2026 Dept: 510

No.

5 - Lauzon Paluch v. Brady Willmon

Petitioner Lauzon Paluch's Motion to
Compel Arbitration

Petitioner

Lauzon Paluch moves to compel arbitration of its claims for unpaid legal fees
against Respondent Brady Willmon.

The

law favors enforcement of valid arbitration agreements. (Armendariz v. Foundation
Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 97.) The party
moving to compel arbitration must establish the existence of a written
arbitration agreement between the parties. (Code of Civ. Proc., § 1281.2.)

Petitioner attached its retainer

agreement with Respondent, which is signed by both parties. (Petition, Ex. A.) The
agreement contains an arbitration provision, which applies to “any dispute or
controversy between you and the Firm regarding the construction, application or
performance of any services under this Agreement, and any claim arising out of
or relating to this Agreement or its breach.” (Id., at p. 9.)

Arbitration is also the remedy when the specific dispute arises over “attorneys’
fees, charges, costs or expenses,” as is the case here. (Id., at p. 11.)

Therefore,

Petitioner established the existence of a valid arbitration agreement between
the parties that covers the dispute here. The arbitration agreement is valid

and should be enforced.

Respondent

filed an opposition. He argues Petitioner's claim is barred by the statute of limitations, the laches defense applies, and there is a lack of access to relevant evidence. These arguments do not address the enforceability of the arbitration agreement itself and therefore will not be considered by this Court. The arbitrator will be able to address each of these issues.

Petitioner

requests the Court appoint an arbitrator for the parties that has family law experience. The Court declines to appoint an arbitrator. The agreement between the parties provides:

Any party may request ADR to identify panels of retired or former jurists with at least two (2) years of family law judicial experience to sit as an arbitrator . . . the arbitrator determining the submitted matters shall be selected from such panels pursuant to ADR rules. If an Arbitrator cannot be selected pursuant to the ADR rules, then the Superior Court of Los Angeles County shall choose an impartial arbitrator whose decision shall be final and conclusive on all parties.

(Petition,
Ex. A, at p. 10.)

In a somewhat contradictory manner,
the process for fee disputes involves a different arbitral body:

Notwithstanding subparagraph A above,
in any dispute subject to the jurisdiction of the State of California over attorneys' fees, charges, costs or expenses, you have the right to elect arbitration pursuant to the fee arbitration procedures of the State Bar of California, as set forth in California Business and Professions Code Section 6200, et seq.
... If, after receiving a notice of client's right to arbitrate, you do not elect to proceed under the State Bar fee arbitration procedures, and file a request for fee arbitration within 30 days, any dispute over fees, charges, costs or expenses, will be resolved by binding arbitration as provided in the previous subparagraph A. Arbitration under this section shall proceed before the Beverly Hills Bar Association, Beverly Hills, California.

(Petition,
Ex. A, at p. 11.)

Petitioner wants the Court to determine that the arbitration provisions in Section 20.A apply, and to select an arbitrator from the ADR Services panel with family law experience. The Court cannot do this. On its face, the arbitration provision in Section 20.B applies equally to this fee dispute. That provision mandates determination by the Beverly Hills Bar Association. While the parties agreed to arbitration, the Court will let the parties determine which of the two agreed arbitral bodies will be selected. The selected body, not the Court, will appoint an arbitrator. At that time, Respondent can assert his defenses.

Disposition

Petitioner
Lauzon Paluch's motion to compel arbitration is granted. The Court hereby orders Respondent Brady Willmon to arbitrate with Petitioner.